

National Reconstruction Authority

Procedure Relating to Mobilization of Non-Governmental Organizations for Reconstruction and Rehabilitation, 2016

Preamble: Whereas, it is expedient to extend cooperation in formulation, approval, implementation, monitoring and evaluation of programs in accordance with the spirit of the **Act Relating to Reconstruction of the Earthquake Affected Structures, 2016** in order to mobilize the assistance to be received through National/International Non-Governmental Organizations (NGOs/INGOs) for the reconstruction of structures damaged by the April 25, 2015 earthquake and its subsequent aftershocks in a simple, easy, transparent and integrated manner and make the coordination of such organizations effective,

Now, therefore, in exercise of the powers conferred by Section 31 of the same Act, National Reconstruction Authority has made the **Procedure Relating to Mobilization of Non-Governmental Organizations for Reconstruction and Rehabilitation, 2016**.

Chapter-1

Preliminary

1. Short Title and Commencement:

- (a) This Procedure may be cited as "**Procedure Relating to Mobilization of Non-Governmental Organizations for Reconstruction and Rehabilitation, 2016**".
- (b) This Procedure shall come into force immediately after being approved by the Directorate Committee of National Reconstruction Authority.

2. Definitions: Unless the subject or the context otherwise requires, in this Procedure:

- (a) "**Act**" means the Act Relating to Reconstruction of the Earthquake Affected Structures, 2015.
- (b) "**Authority**" means National Reconstruction Authority constituted under the Act.
- (c) "**Procedure**" means the Procedure Relating to Mobilization of Non-Governmental Organizations for Reconstruction and rehabilitation, 2016.
- (d) "**Sub-Regional Office**" means sub-regional office established under National Reconstruction Authority.
- (e) "**Local Resource Center**" means the unit formed pursuant to Schedule-5 of National Reconstruction and rehabilitation Policy, 2015.
- (f) "**Central Project Implementation Unit**" means a structural unit, subject to National Reconstruction and Rehabilitation Policy, 2015.
- (g) "**Subsidy**" means any assistance to be provided to beneficiaries by national and international non-governmental organizations in addition to the Authority.
- (h) "**Beneficiary**" means any person, family, organization and community who are directly or indirectly benefitted from the reconstruction and rehabilitation works in earthquake affected districts.
- (i) "**Non-Governmental Organization**" means a nonprofit organization registered with the government office prescribed under the existing Nepal Laws.
- (j) "**International Non-Governmental Organization**" means an organization authorized to work under Section 12 of the Social Welfare Act, 1992.
- (k) "**Fund**" means National Reconstruction Fund.
- (l) "**Other Assistance Providers**" means any domestic or foreign person, family, community organization that provide assistance in reconstruction and rehabilitation works or private sector providing assistance under Corporate Social Responsibility.

- (m) **"Partner Organization"** means any national/international non-governmental organization or other assistance providers or a group of one or more of such organizations.

3. Objectives of Procedure: This Procedure has the following objectives:

- (a) To provide guidelines to mobilize activities to be conducted by various national and international non-governmental organizations interested in carrying out works relating to reconstruction and rehabilitation, and other assistances in an integrated, collaborative and justifiable manner.
- (b) To mobilize or cause to be mobilized the assistance to be received for reconstruction and rehabilitation works in a transparent and effective way.
- (c) To create an environment for the maximum utilization of national and international know-how, skills and resources in reconstruction, rehabilitation and livelihood activities of earthquake affected areas.
- (d) To create confidence-building measures among the government bodies, international donor agencies, non-governmental organizations, local communities and other stakeholder agencies involved in reconstruction and rehabilitation works, and maintain uniformity in their performance.

Chapter-2

Guiding Principles and Working Areas Relating to Non-Governmental Organization

4. Guiding Principles Relating to Non-Governmental Organization: Assistance to be received from partner organizations shall be mobilized on the basis of the following guiding principles:

- (a) It shall be guided by the matters of fulfilling the objectives of the Authority while mobilizing assistance from partner organizations in reconstruction and rehabilitation works,

- (b) One-door system shall be adopted while conducting programs with respect to reconstruction, rehabilitation and livelihood by partner organizations,
- (c) While mobilizing partner organizations, it shall be done in such a way as to cover the geographical area designated by the Authority, and specific damaged area and beneficiaries in a sectoral manner.
- (d) While operating the project, it shall be done without duplication of works in any geographical area or sectoral level.
- (e) Works may be carried out by designating main partner organization and grouping other partner organizations under such organization to act in a geographical location or a specific sectoral area. For this purpose, the Authority shall determine the criteria for designation of main partner organization.

5. Working Areas: Partner organizations that wish to conduct a program in earthquake affected area may work in one or more of the following areas:

- (a) *Rural housing and settlement development:* Works concerning rehabilitation, resettlement, and reconstruction, repair and retrofitting of private housing and water supply and sanitation including infrastructure related works as to ensure systematic development in Village Development Committee.
- (b) *Conservation of urban housing and heritage:* Works concerning restoration, resettlement, repair, retrofitting of structures and settlement, water supply and sanitation including urban infrastructure in municipalities and reconstruction and repair of historical heritage and monuments of municipalities and VDCs.
- (c) *Social mobilization and economic restoration:* Human resource development, income generation, livelihood, skill development training and self-employment including other works concerning economic and social restoration.
- (d) *Community building:* Works concerning design and construction of government building and other structures, school, health institution and community building, resource center etc.
- (e) *Other cross-cutting areas:* Technical assistance, disaster risk reduction, consultancy service, publicity, public awareness, distribution of construction

materials and equipment, supply chain management, transportation subsidy of construction materials and geo-technological study, works concerning research and development.

- (f) Other working areas prescribed by the Authority.

6. Role of Partner Organization: In the context of reconstruction and rehabilitation, partner organizations shall be mobilized in working areas as referred to in Section 5 in a manner to perform the following roles:

- (a) To conduct training programs that enhance technical and other capacities to mainstream the beneficiaries of deprived sector.
- (b) To conduct infrastructure and livelihood programs in relocated settlements.
- (c) To reconstruct physical and social infrastructure in compliance with the standard prescribed by the concerned body in addition to damaged private housing.
- (d) To encourage for innovative technology as well as typical know-how and green technology.
- (e) To use and cause to be used the approved standard, design, construction method and quality construction materials while reconstructing the structures damaged by the April 25, 2015 earthquake and its subsequent aftershocks.
- (f) To carry out works relating to construction and repair of structures of public sector.

7. Terms and Conditions to be complied with By Partner Organizations: (1) In conducting various reconstructions, rehabilitation and livelihood programs, the partner organizations shall be required to do so, subject to the following terms and conditions.

- (a) The Authority shall ask for project proposal by mapping resources while designating working areas keeping in mind the need for reconstruction that is suitable to the concerned geographical location. The non-governmental organizations shall have to submit the project proposal pursuant to Schedule-1. Necessary sources, means and human resource shall be required to be provided by own or from other committed sources in the proposal. The amount under the

bilateral and trilateral agreement entered into with the Government of Nepal shall not be permitted to be used in private housing subsidy pursuant to Section 7(2)(a).

- (b) Provided, in the case of agreements and consensus reached with pertinent agencies of the Government of Nepal for reconstruction and livelihood prior to coming into force this Procedure, works shall be carried out by concluding a tripartite agreement as referred to in Schedule-2 among the Authority, implementing agency or District Development Committee and the concerned organization on the basis of policies, laws, regulations, procedures and standards relating to reconstruction by amending such agreements and consensus in accordance with the Act of the Authority if it deems necessary.
- (c) The Partner Organization shall have to self-declare in the project proposal that it shall not collect cash from the local level and other sources shall not be searched for the programs mentioned in the agreement after being listed in the Authority.
- (d) The Authority may, if it finds the project proposal to be in consistent with the approved standards during its study, approve such proposal and grant permission to operate the program and the Authority, implementing agency or pertinent District Development Committee and the concerned Partner Organization shall enter into a tripartite agreement under Schedule-2.
- (e) Partner organization shall, while conducting program, have to do so under the direct monitoring and directives of sub-regional office of the Authority or of an officer prescribed by that office in the district or resource center. Similarly, the partner organization shall have to conduct programs in coordination and communication with the concerned project implementation unit and Chief District Officer and local body of the concerned district.
- (f) In conducting programs in any Ward, activities shall be carried out by maintaining contact with the Ward Civil Forum or Local Disaster Management Committee. District Coordination Committee may issue necessary directives by monitoring the programs so conducted.

(2) The following shall be the provisions for reconstruction of damaged private housing:

- (a) The Authority shall, while selecting beneficiary households for the reconstruction of private housing, recommend by segmenting the place and cluster. Once it is

recommended this way, information shall be provided to sub-regional office and District Coordination Committee and implementing agency for implementation.

- (b) Any association/organization that wishes to work in private housing shall have to get the project proposal along with detailed particulars approved by the Authority.
 - (c) Partner organization willing to provide assistance for reconstruction of private housing shall be encouraged to deposit the amount in the Reconstruction Fund of the Authority as far as possible. Provided, if any partner organization wishes to distribute housing reconstruction subsidy directly without depositing the amount in the Reconstruction Fund, it shall be required to provide the subsidy in installments through banking channel under the system and procedures referred to in the "Procedure Relating to Distribution of Earthquake Damaged Private Housing Reconstruction Subsidy, 2015".
 - (d) Association/organizations that wish to work in private housing shall be encouraged to work in the construction of private housing of the following areas:
 - 1) Resettlement and settlement relocation,
 - 2) Very disadvantaged family, family of widow and single woman with only underage offspring, family with only members of senior citizens above 75 years, personal housing for single person with disabilities, and
 - 3) Transportation management necessary for private housing reconstruction in prescribed remote areas.
- (3) The beneficiaries recommended under Sub-Section (7)(2)(a) shall be required to be provided with only Two Hundred Thousand Rupees through banking channel under the "Procedure Relating to Distribution of Earthquake Damaged Private Housing Reconstruction Subsidy, 2015" so as to reconstruct by the concerned house owner him/herself on the basis of the concept of self-construction. Provided, subsidy not exceeding Two Hundred and Fifty Thousand Rupees may be provided to each beneficiary while providing housing reconstruction subsidy for the working areas stated in 1), 2) and 3) of Section (7)(2)(d). In addition, association/organizations shall be encouraged to conduct basic community infrastructure and income generation programs along with housing reconstruction.

- (4) In submitting proposal pertaining to reconstruction of damaged private housing, program shall have to be proposed in such a ways as to make contribution to the construction of specified basis local infrastructure projects including no less than 250 private housing in the case of international non-governmental organizations and at least 50 in the case of national non-governmental organizations and other assistance providers within a specific geographical area by adopting the concept of self-construction requiring the reconstruction by the concerned house owner him/herself. Provided, the Authority may, as necessary, make revision in such numbers in the areas referred to in 1), 2) and 3) of Section (7)(2)(d). In addition, identification of families pursuant to Section (7)(2)(d) shall be as per the standards prescribed by the Authority.
- (5) Partner organization shall, while conducting the programs, have to comply with the national priority provided in national policies and programs including the existing Nepal Laws and National Reconstruction and rehabilitation Policy, 2015.
- (6) Partner organizations shall, while conducting the programs relating to reconstruction of housing, building and other physical structures, have to do so in such a way as to carry out the reconstruction of structures that is suitable to the concerned geographical area in consistent with the procedures, framework, norms, standards and design developed by the Authority and pertinent implementing agencies, subject to the purview of damage assessment. While conducting livelihood programs, it shall have to be conducted keeping in mind the international principles of humanitarian assistance as well.
- (7) Once the partner organizations obtain permission from the Authority or subordinate agency, it shall be required to commence the works by coordinating with the concerned sub-regional office and designated implementing agencies within Seven Days in the case of urban area and within Fifteen Day when it comes to rural area.
- (8) The partner organization shall, in consistence with generally accepted accounting principles of non-governmental organizations, have to maintain the accounts of all expenditure made by them and get them same audited by a registered auditor compulsorily. In addition, they shall be required to conduct public hearing and social audit among the beneficiary groups and stakeholders concerning the operating projects on a periodic basis and provide information thereof to the Authority as well.
- (9) While conducting programs in earthquake affected areas, no one shall be permitted to conduct any program that disturbs the national integrity, sovereignty, ethnic and caste groups, and communities, religious and social harmony of the country directly or indirectly, or in such a way as to be in contravention of national security policy as well as local culture. It shall not be permitted to conduct programs on the basis of religion, sect, territory and

political conviction. Similarly, no one shall be allowed to reap commercial benefits of any kind from the conducted programs and make use of advertisement, publicity etc. as well.

- (10) While conducting reconstruction, rehabilitation and livelihood programs, no one shall be permitted to mobilize resources for the purpose, place or group other than the purpose, place or group prescribed by the Authority.
- (11) Except the expert human resources and materials unavailable in the domestic market, international non-governmental organization shall have to mobilize all other human resources and materials from within the country. For the purpose of visa to foreign human resources necessary for reconstruction, the Authority may recommend taking into account its necessity and rationality. It shall be required to obtain work permit from the concerned body necessary for this as per the rules.
- (12) Partner organizations that conduct reconstruction and rehabilitation programs shall, while fixing remuneration, and service and facilities of pertinent employees, have to fix them as to be equal to one another, subject to the prescribed standard.
- (13) Overhead cost, human resource management and operating cost of national and international non-governmental organization shall not exceed 20 percent of the total project cost.
- (14) The Authority shall coordinate and facilitate with the agencies including Social Welfare Council for simplification of operation of partner organizations involved in reconstruction and rehabilitation programs. For this purpose, a Partner Organization Arbitration Committee headed by the Authority shall be constituted consisting of representatives from Social Welfare Council, Ministry of Women, Children and Social Welfare, Ministry of Finance, program related Ministry, department and Project Implementation Units and partner organizations. Such Committee shall fix its procedures by itself.
- (15) Any international non-governmental agency shall, while carrying out works, have to do so in partnership with at least one national non-governmental organization.

Chapter-3

Procedure of Project Proposal and Approval

8. Project Proposal:

- (1) Any partner organization that wishes to conduct program in earthquake affected area shall have to submit an application and a project proposal, accompanied by a detailed outline of the program that it is interested to conduct to the Authority.
- (2) In proposing a project pursuant to Sub-Section (1), the following requirements shall be required to be fulfilled:
 - a) Activities shall have to be undertaken in district where beneficiaries recommended by the Authority under Section 7(2)(a) are residing.
 - b) Proposal shall be required to be made in such a way as to be consistent with all kinds of policies, directives, procedures etc. that are in implementation after getting approved by the Authority at once.
 - c) Any organization submitting a project proposal shall have to be registered under the Nepal Laws.
 - d) In the case of an international non-governmental organization, it shall be required to be listed in Social Welfare Council and also got renewed throughout the course of the project on a regular basis.

9. Selection of Proposal: (1) Only the proposals that are in compliance with the objectives provided in Section 2 of this Procedure shall be approved after consulting the concerned division and the experts in the concerned field as necessary on the proposals received pursuant to Section 8.

- (2) If two or more project proposals are received to conduct program in the same thematic and same geographical area, selection shall be based on the following criteria:

- (a) Amount pledged for expenditure,
 - (b) Institution working experience in the concerned field,
 - (c) Working experience of human resources in the concerned field, and
 - (d) In the case of an organization that worked before, status of performance appraisal.
- (3) The decision of the Authority shall be the final decision in relation to selection of the proposals.
- (4) The criteria of prioritization shall, while conducting programs, be as per the Laws and Rules relating to reconstruction of earthquake affected structures, 2015.
- (5) The Authority may, after holding discussion with the concerned organizations, grant the proponents who failed to be selected the permission to conduct programs in other geographical areas and working areas.
- (6) There shall be the following Recommendation Committee to recommend for the selection of proposed projects:
- a. Joint Secretary of the Authority's Policy, Planning, Monitoring and Foreign Assistance Coordination Division- **Coordinator**
 - b. Concerned Divisional Chief of the Authority- **Member**
 - c. Under Secretary, the Ministry of Finance- **Member**
 - d. Representative of at least Gazetted Second Class from Social Welfare Council- **Member**
 - e. Representative of at least Under Secretary level from the concerned Ministry, Department and Project Implementation Unit- **Member**
 - f. Under Secretary of the Authority's Foreign Assistance Coordination and Budget Management Section- **Member Secretary**

- (7) Other sectoral Ministries, Project Implementation Units relating to the proposal and expert of the concerned field in relation to the project proposals may be invited to this Committee as necessary.
- (8) The Recommendation Committee shall, after examining the proposals, have to recommend to the Executive Committee within Seven Days from the date of expiry of the deadline for the submission of proposal.
- (9) The Executive Committee may approve the received proposal or delegate the power for its approval.

10. To Enter Into Agreement with Non-Governmental Organizations: Once the project proposal has been approved, the Authority shall conclude a tripartite agreement in the format as referred to in Schedule-2 under Sub-Rule (8) of Rule 5 of the Regulation Relating to Reconstruction of Earthquake Affected Structures, 2015. That Schedule and other Schedules included in this Procedure shall remain as an integral part of this Procedure.

11. Monitoring, Evaluation and Reporting: (1) Partner Organizations shall have to submit monthly progress report of the programs conducted by them to Sub-Regional Office of the Authority or the agency specified by the Authority and the pertinent implementing agency in the format as referred to in Schedule-3.

- (2) Sub-Regional Office of the Authority and the concerned District Level Project Implementation Unit or designated implementation agency shall carry out monitoring and evaluation of the works of Partner Organization on a periodic basis.
- (3) Central Office of the Authority may carry out or cause to be carried out monitoring as necessary on periodic basis.
- (4) Sub-regional offices shall submit periodic report of the works carried out in their respective working areas after obtaining approval under Section 9 to the Authority on a four monthly basis.

Chapter-4

Miscellaneous

12. Power to Issue Order to Put the Project Works on Hold to Organization that Fails to Provide Information: (1) The Authority and its subordinate agencies may ask the partner organizations active in their working areas for information on various subjects relating to the project.

(2) The Authority may issue order to put the project works on hold for a definite period of time to any Partner Organization that fails to provide information as asked for pursuant to Sub-Section (1), conduct programs as approved and submit progress report on time. Visa of such organization shall also be suspended and deprived of renewal in addition to including and making public the name of the organization and the concerned person in the blacklist.

(3) The Authority shall have to send information about the order to put the project works on hold to the concerned Central Project Implementation Unit and Social Welfare Council within Seven Days from the date of such order.

13. Termination of Agreement: If any partner organization is found to have committed any act in contravention of the provisions provided in this Procedure, the Authority shall terminate the agreement concluded with such organization giving it a chance to defend itself against the allegations and provide information thereof to Social Welfare Council and the concerned Partner Organization by making disclosure as well.

14. Revision and Amendment in Procedure: If any difficulty arises with respect to implementation of this Procedure, the Executive Committee may revise and amend it as necessary.

15. Power to Issue Directives: The Authority may issue directives to the Partner Organization in relation to the project implementation. It shall be the duty of the concerned organization to abide by the directives so issued.

16. Partner Organization Coordination Committee: (1) The following Partner Organization Coordination Committee shall be constituted to coordinate with the Partner Organizations and local non-governmental organizations and enhance effectiveness of program implementation for the operation of reconstruction, rehabilitation and livelihood programs:

Chief Executive Officer- **Coordinator**

Experts of Executive Committee- **Member**

Three persons representing national and international non-governmental organizations and assistance providers- **Member**

Secretaries of the concerned Ministry, Commission and Bodies- **Member**

Secretary of the Authority- **Member Secretary**

(2) The members pursuant to Sub-Section (1) shall be nominated by the Authority and that Committee shall determine its procedures by itself.

17. Arbitration May Be Made: (1) The Authority may recommend the Social Welfare Council for renewal of international non-governmental organizations active in reconstruction works after entering into a tripartite agreement in the format as referred to in Schedule-2 of Section 10 of this Procedure in a condition where they have carried out reconstruction works in the areas specified by the Authority.

(2) **Arbitration Sub-Committee:** There shall be the following Arbitration Sub-Committee to arbitrate in registration, renewal of international organizations in consistent with this Procedure and in recommendation for visa to foreign citizens involved in project under Section 7(11):

Joint Secretary of the Authority's Policy, Planning, Monitoring and Foreign Assistance Coordination Division- **Coordinator**

Joint Secretary, the Ministry of Home Affairs- **Member**

Joint Secretary, the Ministry of Labor and Employment- **Member**

Joint Secretary, the Ministry of Women, Children and Social Welfare- **Member**

Under Secretary, Foreign Assistance Coordination and Budget Management Section- **Member Secretary**

- (3) The Sub-Committee pursuant to Sub-Section (2) shall make the arbitration by fixing its procedures by itself. Social Welfare Council shall have to register and renew the organizations so arbitrated by adopting short procedures in the registration and renewal of such organizations. The Ministry of Home Affairs and other pertinent agencies shall have to initiate visa proceedings on the basis of the recommendation of such Sub-Committee.

Schedule-1

**Model of Project Proposal to be presented by Partner Organization for Reconstruction,
Rehabilitation and Livelihood**

(Relating to Sub-Section 1(b) of Section 7)

National Reconstruction Authority
Singha Durbar, Kathmandu, Nepal

Subject: Project Proposal.

Dear Sir/Madam,

I/We, hereby, request you for the approval of this project proposal, accompanied by the following particulars submitted with an objective of providing assistance in the rehabilitation and reconstruction campaign to be conducted by the National Reconstruction Authority.

Signature:

Name and Surname:

Designation:

Partner Organization:

Clause (a): Project Proposal (Relating to Sub-Section 1(b) of Section 7)

1. Name of Project:
2. Name and Address of Person/Organization Conducting Program:
3. Background of Project:
4. Details of Person and Community to be Benefitted from Project:
5. Objectives of Project:
6. Place of Project Implementation:
7. Main Activities of Project:
8. Expected Outcomes of Project and Performance Indicators:
9. Project Period: From..... To
10. Project Cost: *(Setting out ratio of operating cost and program cost including overhead)*
11. Source of Assistance:
12. Mode of Expenditure:
13. Local Development Partners:
14. Type of Assistance: *(Cash, kind and others)*
15. Ministry/Project Implementation Unit Concerned with Project:
16. Other Particulars Relating to Project Implementation: *(Under this, responsibility of the parties of agreement and matters to be taken into consideration while implementing the subjects mentioned in the Procedure shall have to be provided)*
17. Exit Policy:
18. Other Relevant Details: *(If any)*

Clause (b): Self-Declaration (Relating to Sub-Section 1(c) of Section 7)

Given the interest in providing assistance in reconstruction and rehabilitation and livelihood activities to be undertaken by the National Reconstruction Authority, I /We, on behalf of the project proponent Partner Organization....., in a manner to get involved as an integral part of the agreement relating to assistance, hereby, make self-declaration of the following matters:

1. I/We shall mobilize the amount required for the given assistance from own source. Amount shall not be collected from the local level.
2. Assistance amount was received from legitimate source under the existing laws. Assistance has not been mobilized against the laws relating to money laundering.
3. Source is available to perform works in compliance with the agreement. There shall be no need to search for separate sources for this after the agreement.
4. Local skills, resources and means, technology and human resources shall be used as far as possible through the mobilization of local partner organizations or community organizations while implementing the project.
5. I/We shall fully comply with the provisions provided in the ***Procedure relating to Mobilization of Non-Governmental Organizations for Reconstruction and Rehabilitation, 2016*** while implementing the project.
6. I/We shall fully cooperate with performance audit to be carried out by technicians on the basis of project implementation process and expected outcomes and performance appraisal.
7. I/We are ready to be liable to any punishment under the existing laws in case of caught guilty of acting against the given declaration and providing falsified information herewith.

Name of Project Proponent Organization:

Contact Address:

Name, Surname of Authorized Person of Organization:

Post:

Signature:

Local Principal Representative Organization of Proponent:

Name, Address of Authorized Person if Representative Organization: Post:

Contact Telephone/Mobile No.:

Email:

Signature:

Date:

Seal in case of Project Proponent and Assistant Provider Organization:



Schedule-2

Model of Agreement to be concluded with Non-Governmental Organization for Rehabilitation and Reconstruction

(Relating to Section 10)

Entered into among the (First party), (Second
Party) and (Third Party) for the implementation of
.....Project.

Tripartite Agreement Paper

Today on 20...../...../....., this tripartite agreement is, for the operation of
(Name of Project) Project, hereby entered into among the National Reconstruction Authority
(Hereinafter called "First Party"),.....Ministry/Department/Office
(Hereinafter called "Second Party") that has its office at.....and Partner
Organization (Hereinafter called "Third Party").....having its permanent
address..... in the presence of the following witness
at.....(Place of agreement) for the conduction of the programs under the project
proposal approved by the Authority on (Date), subject to the following
terms and conditions.

Terms and Conditions of Agreement

- 1) All parties shall, in the course of project operation, have to abide by or cause to be abided by the provisions provided in the "**Procedure Relating to Mobilization of Non-Governmental Organizations for Reconstruction and Rehabilitation, 2016**".
- 2) It shall be the duty of the Third Party to implement the plans and programs in accordance with the project proposal proposed by the Third Party and approved by the First Party attached herewith.
- 3) In the context of project operation, the Second Party may, from time to time, carry out inspection and observation and give suggestions and directives to the Third Party to comply with or cause to be complied with national policy, rules, Building Code, directives etc. in its field of subject expertise. It shall be the duty of the Third Party to abide by or cause to be abided by the directives of the Second Party.
- 4) The Third Party may, in the context of operating the project, request for suggestions on policy matters from the First Party and on operation of programs from the Second Party. Both parties shall have to provide suggestions to the Third Party within the appropriate period of time. The Third Party shall make arrangements of resources necessary for this purpose.
- 5) The First Party may, after carrying out overall monitoring and evaluation of the implementation of this agreement, issue necessary directives to the Third Party. For this purpose, the First Party may invite necessary thematic opinion and suggestions from the Second Party.
- 6) All three parties shall maintain collaboration and coordination to prevent the misuse of assistance amount and goods to be received for project.
- 7) If any difficulty arises in relation to the project implementation, this tripartite agreement may be revised and amended by forging consensus among all three parties.
- 8) If any dispute arises in the course of implementation of this agreement, such dispute shall be settled on mutual understanding among all three parties. Provided, if a mutual understanding cannot be reached this way, the decision to be given by the Executive Committee of the Authority shall be the final decision.

- 9) This agreement shall not bar the First Party from exercising the powers conferred by the Act Relating to Reconstruction of the Earthquake Affected Structures, 2015 to the National Reconstruction Authority.

On Behalf of Authority

Full Name, Surname:

.....

Post:

Seal of Office:

Witness

.....

Full Name, Surname:

.....

Post:

On Behalf of (Second Party)

Full Name, Surname:

.....

Post:

Seal of Office:

Witness

.....

Full Name, Surname:

.....

Post:

On behalf of (Third Party)

Full Name, Surname:

.....

Post:

Seal of Office:

Witness

.....

Full Name, Surname:

.....

Post:

Schedule-3

Format of Monthly Progress Report

(Relating to Sub-Section (1) of Section 11)

.....Project

Monthly Progress Report of the Month of.....

F/Y:

Chief of the Project:

Area of Project: (a) Geographical: (b) Thematic:

S. N.	Project	Main Activities	Performance Indicators	Goal of Project						Periodic Progress	
				Overall Project		Annual		Trimester			
				Physical	Financial	Physical	Financial	Physical	Financial	Physical	Financial

Prepared By:

Checked By:

Certified By: